CONSEIL DE L'EUROPE

COUNCIL OF EUROPE

COUR EUROPÉENNE DES DROITS DE L'HOMME
EUROPEAN COURT OF HUMAN RIGHTS

SECOND SECTION

FINAL DECISION

Application no. 27794/02
by KESK
against Turkey

The European Court of Human Rights (Second Section), sitting on 21 November 2006 as a Chamber composed of:

Mr J.-P. COSTA, *President,*
Mr I. CABRAL BARRETO,
Mr R. TÜRMEN,
Mr M. UGREKHELIDZE,
Mrs A. MULARONI,
Mrs E. FURA-SANDSTRÖM,
Mr D. POPOVIĆ, *judges,*

and Mrs S. DOLLÉ, *Section Registrar*,

Having regard to the above application lodged on 12 April 2002,

Having regard to the decision to apply Article 29 § 3 of the Convention and examine the admissibility and merits of the case together,

Having regard to the partial decision of 15 November 2005,

Having deliberated, decides as follows:

THE FACTS

The applicant, the Confederation of Public Employees' Trade Unions (*Kamu Emekçileri Sendikaları Konfederasyonu - the "KESK"*), is represented before the Court by Mr Fevzi Gümüş, Mr Metin Ayhan and Mr Akay Sayılır, lawyers practising in Ankara.

The facts of the case, as submitted by the parties, may be summarised as follows.

In 2001 the Turkish Parliament prepared a draft bill to amend the Act on Trade Unions. While this draft was being discussed before Parliament, the

"KESK" organised a meeting in a park in Ankara to protest against the draft. The aim was to draw public attention to, and to achieve the withdrawal of this bill, which in their view did not meet international standards.

On 25 June 2001 members of the applicant confederation gathered in Kızılay. While speeches were made, the police intervened to disperse the group. The officers verbally warned the group that the meeting was illegal since no permission had been obtained from the relevant authorities pursuant to Law No. 2911 on meetings and demonstrations. The police officers then used truncheons, sticks and tear gas bombs to disperse the crowd. Several participants were wounded during the incident.

On an unspecified date, the applicant and the injured persons filed a complaint with the Ankara public prosecutor against the Governor of Ankara, the Ankara Chief of Police and the police officers who were involved in the incident.

Pursuant to Law No. 4483 on the prosecution of civil servants, in order to be able to initiate criminal proceedings, the public prosecutor transferred the file to the Ministry of the Interior for authorisation.

On 9 October 2001 the Ministry of the Interior sent a letter to the public prosecutor and, relying on Article 4 of Law No. 4483, requested that no action be taken against the accused persons. The Ministry considered that the force used by the police had been justified and lawful in the circumstances of the case. In the letter, it was stated the officers had had a duty to disperse the demonstrators who had organised an illegal meeting. Consequently, on 29 January 2002 the Ankara public prosecutor decided to take no action concerning the complaint.

COMPLAINT

The applicant alleges under Article 11 of the Convention that the police interference in the meeting constituted a breach of its right to freedom of expression and freedom of assembly.

LAW

On 15 November 2005 the Court declared the application partly inadmissible and communicated the applicant's complaint under Article 11 of the Convention to the respondent Government. On 9 May 2006 the Government submitted their observations on admissibility and merits. On 18 May 2006 the applicant's representative was invited to submit by

29 June 2006 any further observations in reply, together with any claims for just satisfaction.

On 28 July 2006 the Registry sent a registered letter to the applicant's representative, informing him that the period allowed for the submission of the applicant's observations had expired on 29 June 2006 and that no extension of time had been requested. This letter was delivered to the applicant's representative on 9 August 2006. The Court notes that, in the said letter, the attention of the applicant's representative was drawn to Article 37 § 1 (a) of the Convention. The Registry has received no response to date.

In these circumstances, the Court considers that the applicant may be regarded as no longer wishing to pursue its application, within the meaning of Article 37 § 1 (a) of the Convention. Furthermore, in accordance with Article 37 § 1 *in fine*, the Court finds no special circumstances regarding respect for human rights as defined in the Convention and its Protocols which require the continued examination of the case.

Accordingly, Article 29 § 3 of the Convention should no longer apply to the case and it should be struck out of the list.

For these reasons, the Court unanimously

Decides to strike the application out of its list of cases.

S. DOLLÉ
Registrar

J.-P. COSTA
President